

		was filed on January 15, 2026. Once Cross-Complainants realized their mistake, the cross-complaint was dismissed in March 2026. Only two months have passed before dismissal, which does not tend to show that Cross-Complainants were trying to use the cross-complaint as a means for harassment, unnecessary delay, or to thwart competition. For these reasons, the motion is DENIED. Cross-Complainants to give notice.
8	Hamidi vs. Gordonstone & Tiles, Inc.	OFF CALENDAR
9	Mills vs. Nexgen Air Conditioning and Heating, LLC	CONTINUED TO 9/9/26
10	Rodriguez vs. American Honda Motor CO., INC	TENTATIVE RULING: For the reasons set forth below, the Motion to Tax Costs brought by Defendant American Honda Motor Co., Inc. is GRANTED in part. The Court will tax \$89.50 in costs incurred after March 19, 2026, from the Memorandum of Costs filed by Plaintiff Robert Andrew Rodriguez. “[A] prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) Additionally, a “prevailing party” includes “the party with a net monetary recovery....” (Code Civ. Proc., § 1032, sub. (a)(4).) In addition to the above, pursuant to Civil Code section 1794, subdivision (d), a prevailing buyer in a Song-Beverly action “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses...determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) There is no dispute that Plaintiff is the prevailing party pursuant to the accepted section 998 Offer. (Declaration of Ashleigh K. Gideon (“Gideon Decl.”), ¶¶ 2-3, Ex. A [998 Offer, ¶ 2: “[Defendant] will also pay Plaintiff’s statutory costs and expenses under California Civil Code section 1794(d).... Plaintiff will be considered the prevailing party.”].)

	Further, the Court finds that both the memorandum of costs and the instant motion were timely filed. Per California Rules of Court rule 3.1700, “[a] prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment...or within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Court rule 3.1700(a)(1).) Plaintiff filed his memorandum of costs on May 4, 2026, <i>prior</i> to judgment being entered. Notably, the premature filing of a memorandum of costs is not jurisdictional and is treated as “a mere irregularity at best” that “does not constitute reversible error absent a showing of prejudice.” (<i>Haley v. Casa Del Rey Homeowners Assn.</i> (2007) 153 Cal.App.4th 863, 880.) Thereafter, “[a]ny notice of motion to strike or tax costs must be served and filed 15 days after service of the cost memorandum.” (Cal. Rules of Court, rule 3.1700(b)(1).) If the cost memorandum is electronically served, the deadline is extended by two court days under Code of Civil Procedure section 1010.6(a)(3). (<i>Ibid.</i>) Here, Defendant timely filed and electronically served the motion on May 21, 2026, within the 15-day period as extended by two court days for electronic service. “In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face.” (<i>Foothill-De Anza Community College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29.) “If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.” (<i>Ibid.</i> [internal quotations omitted].) “[I]f the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131.) “[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face.” (<i>Ibid.</i>) “However, ‘[i]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the [prevailing party], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” (<i>Ibid.</i>) “Where costs are not expressly allowed by statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.” (<i>Foothill-De Anza Community College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29.) “Whether a cost item was reasonably
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